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SUBSCRIPTION AGREEMENT

TaxRock Master Subscription Agreement

LENDER EDITION · TR-MSA-LN-13

This document is attached to, and forms part of, the TaxRock Pricing Proposal (quote) presented for signature. It contains the Standard Pricing Proposal Terms and the Master Subscription Agreement. Customer's electronic signature of the Pricing Proposal accepts both.

STANDARD PRICING PROPOSAL TERMS

Billing unit. One Active Client Relationship is one borrower under one facility, together with every entity and taxpayer identification number served under that facility, however many obligations are involved. Active Client Relationships are defined in Section 2.5 of the Master Subscription Agreement below, which controls.

1. **Billing.** The Subscription Fee is charged on execution of the MSA and monthly thereafter on the same day, to the payment method on file. Fees are exclusive of applicable taxes. All amounts are in USD.
2. **Term.** Month to month. No minimum term and no renewal date. Either party may cancel on thirty (30) days' written notice. TaxRock may update the Subscription Fee on thirty (30) days' written notice, and Customer may cancel without penalty before the change takes effect.
3. **Included capacity.** The Subscription Fee includes up to the number of Active Client Relationships stated above, which Customer may provision at any time. If needs grow beyond that capacity, TaxRock and Customer will establish revised capacity and pricing through an updated Pricing Proposal, and the additional capacity becomes available on execution.
4. **Guided Implementation.** The subscription includes a 60-day Guided Implementation beginning on the Effective Date. TaxRock will work with Customer to configure its account, begin client provisioning, and train its team on use of the platform. Customer may continue provisioning clients within its included capacity after the Guided Implementation. Additional TaxRock-led implementation or training requested by Customer may be quoted separately based on scope.
5. **Precedence.** In the event of a conflict, this Pricing Proposal controls with respect to the Subscription Fee, included capacity, and other expressly stated commercial terms. The MSA controls in all other respects. The terms of this Pricing Proposal are confidential.
6. **Validity.** The Pricing Proposal expires on the Valid Through date stated on it unless extended in writing by TaxRock.

MASTER SUBSCRIPTION AGREEMENT

This **Master Subscription Agreement ("Agreement")** is entered into by and between **TaxRock LLC**, a Delaware limited liability company ("TaxRock"), and the customer identified as the buyer in the TaxRock Pricing Proposal to which this Agreement is attached ("Customer"), effective as of the date of Customer's signature of that Pricing Proposal (the "Effective Date"). TaxRock and Customer may be referred to individually as a "Party" and collectively as the "Parties".

1. AGREEMENT OVERVIEW

1.1 Purpose: This Agreement establishes the commercial and legal relationship between TaxRock and Customer with respect to Customer's use of the TaxRock platform and related services ("Services").

1.2 Pricing: Subscription fees are set forth in Section 6 of this Agreement and in the Pricing Proposal incorporated into this Agreement, and consist of a flat monthly fee scoped to Customer's included capacity.

1.3 Terms of Service: All access to the Services by Customer's staff and Customer's clients is subject to the **TaxRock Terms of Service ("TOS")**, which everyone must accept upon first login and controls all platform-level rights and obligations and may be updated by TaxRock from time to time.

1.4 Order of Precedence: If there is any conflict between this Agreement and the TOS, this Agreement controls as between TaxRock and Customer. In the event of a conflict, the Pricing Proposal controls with respect to the Subscription Fee, included capacity, and other expressly stated commercial terms. This Agreement controls in all other respects. The TOS governs individual end-users' and Monitored Clients' use of the platform.

2. DEFINITIONS

2.1 "Authorized Users": Employees, contractors, or staff of Customer who are permitted by the Customer to access the Services. Authorized Users are unlimited and are not a basis for fees.

2.2 "Seats": A single permitted login and access right for one Authorized User. Seats govern platform access only and are not the basis for subscription fees.

2.3 "Monitored Clients": Individuals or business entities who are clients of Customer and who are provisioned within Customer's account through the Services. Monitored Clients are clients whose IRS account information, transcripts, notices, or other tax-related data is retrieved, processed, or monitored through the Services. Monitored Clients represent the Customer's client relationship and may be associated with one or more Monitored Taxpayers for purposes of the Services. Monitored Clients are not customers of TaxRock.

2.4 "Monitored Taxpayers": Individual taxpayers, including individuals or business entities with distinct taxpayer identification numbers, who are provisioned within Customer's account through the Services. Monitored Taxpayers are the underlying taxpayers associated with a Monitored Client, and a Monitored Client may have one or more Monitored Taxpayers.

2.5 "Active Client Relationship": One borrower of Customer under one credit facility, together with every Monitored Client and Monitored Taxpayer served under that facility, regardless of the number of taxpayer identification numbers, entities, guarantors, or obligations involved. A person or entity that contracts with Customer separately and is billed separately is a separate Active Client Relationship. Active Client Relationships are the sole basis on which Subscription Fees are calculated.

2.6 "Pricing Proposal": The TaxRock quote to which this Agreement is attached, stating Customer's included capacity, monthly Subscription Fee, billing contact, and any agreed commercial terms, together with the Standard Pricing Proposal Terms set out at the beginning of this document. The Pricing Proposal is incorporated into this Agreement by reference. Customer's electronic signature of the Pricing Proposal executes this Agreement and accepts the Pricing Proposal. No separate signature to this Agreement is required.

2.7 "Monitored Data": All IRS data, tax information, authorization forms (including Form 8821 or equivalent electronic authorization), transcripts, notices, documents, metadata, and any other information relating to Monitored Clients and/or Monitored Taxpayers that is submitted, uploaded, retrieved, or processed through the Services.

2.8 "Customer Data": Business information, internal firm records, configuration settings, billing information, and other non-IRS data submitted by Customer or its Authorized Users.

2.9 "Client Consent": A valid IRS authorization (Form 8821 or equivalent electronic authorization) executed by a Monitored Taxpayer authorizing Customer (and TaxRock as Customer's technology provider) to retrieve IRS data for that Monitored Taxpayer.

2.10 "Documentation": User guides, onboarding materials, and instructions provided by TaxRock.

3. TERM AND TERMINATION

3.1 Effective Date: This Agreement becomes effective on the date of Customer's signature.

3.2 Subscription Commencement: Customer's subscription begins on the Effective Date. The first Subscription Fee is charged on the Effective Date and recurs on the same day of each month thereafter (the "Billing Date"), in accordance with Section 6. If a month does not contain the corresponding day, the Billing Date is the last day of that month.

3.3 Subscription Term: The subscription is month to month. There is no minimum term and no renewal date; it continues until cancelled. Either Party may cancel on at least thirty (30) days' written notice, and the subscription ends at the close of the notice period. Customer authorizes TaxRock to charge the payment method on file through the end of the notice period. Customer may submit cancellation notice to support@taxrock.com.

3.4 Termination for Cause: Either Party may terminate this Agreement for material breach by written notice describing the breach. Termination takes effect at the end of the thirty (30) day cure period if the breach remains uncured. The date on which cancellation under Section 3.3 or termination under this Section takes effect is the "Effective Termination Date".

3.5 Effect of Termination: Upon cancellation or termination:

a) Customer's access to the Services ends on the Effective Termination Date.

b) TaxRock stops all transcript retrieval, monitoring, notifications, and related automated processing for Customer and its Monitored Clients and Monitored Taxpayers on the Effective Termination Date.

c) TaxRock does not provide data exports upon cancellation. IRS transcripts and related information can be obtained directly from the IRS at any time by Customer or its clients.

d) All unpaid fees accrued through the Effective Termination Date become immediately due and payable.

3.6 Survival: Sections 2 (Definitions), 6 (Fees & Payment) with respect to amounts accrued through the Effective Termination Date, 7 (Confidentiality), 8 (Limitation of Liability), and 9 (General Provisions) survive cancellation or termination of this Agreement.

4. SERVICES & ACCESS

4.1 Services: "Services" means access to the TaxRock platform made available to Customer under this Agreement and the TOS. Customer acknowledges that the Services may evolve over time and that TaxRock may modify or update the platform without prior notice, provided such changes do not materially degrade overall functionality. TaxRock does not warrant or guarantee the availability of any particular feature, workflow, or functionality.

4.2 Grant of Access: Subject to Customer's compliance with this Agreement and payment of applicable fees, TaxRock grants Customer a non-exclusive, non-transferable right to permit Authorized Users to access and use the Services for Customer's internal business purposes.

4.3 User-Level Acceptance of TOS: Customer's Authorized Users and Customer's clients must accept the TOS upon first login. Acceptance forms a direct agreement between the user and TaxRock governing platform use.

4.4 Restrictions: Customer may not sublicense, resell, assign, or transfer access to the Services without TaxRock's prior written consent.

4.5 Customer Support: TaxRock will provide support via email and in-platform messaging during normal business hours (Monday–Friday, 9:00 a.m. to 5:00 p.m. PST). TaxRock does not provide live phone support or custom consulting unless otherwise agreed in writing. Response times are provided on a commercially reasonable basis.

4.6 Guided Implementation: Customer's subscription includes a guided sixty (60)-day implementation period beginning on the Effective Date (the "Guided Implementation"). During the Guided Implementation, TaxRock will work with Customer to configure its account, begin client provisioning, and train its team on use of the Services. Following the Guided Implementation, Customer may continue to provision clients within its included capacity. Additional TaxRock-

led implementation or training services requested by Customer may be subject to additional fees as set forth in the applicable Pricing Proposal.

4.7 Client Relationship Changes: Customer may provision Monitored Clients and Monitored Taxpayers up to the number of Active Client Relationships included in its subscription, and may deactivate them at any time. Adding capacity beyond that number is governed by Section 6.3. Deactivation or cancellation stops monitoring and related Services. Form 8821 and equivalent authorizations remain on file to allow for streamlined reactivation of Services, unless Customer requests their withdrawal.

5. RESPONSIBILITIES OF THE PARTIES

5.1 Customer Responsibilities: Customer agrees to:

a) Provide accurate and complete information necessary for onboarding, including IRS authorization forms (e.g., Form 8821) when applicable.

b) Ensure Authorized Users comply with the TOS.

c) Use the Services in accordance with applicable laws and IRS regulations.

d) Pay all fees in accordance with Section 6 of this Agreement.

5.2 TaxRock Responsibilities: TaxRock will:

a) Provide access to the Services as described in this Agreement.

b) Maintain commercially reasonable administrative, technical, and physical safeguards to protect Customer Data and Monitored Data.

c) Process IRS authorization forms and retrieve IRS information.

d) Provide customer support as described in Section 4.5.

6. FEES & PAYMENT

6.1 Fees: The subscription fee for the Services is a flat monthly fee stated in the Pricing Proposal (the "Subscription Fee"). Pricing is scoped individually to each Customer based on the requirements of its business.

6.2 Measurement: TaxRock's system records are the authoritative source for the number of Active Client Relationships provisioned in Customer's account. TaxRock does not audit Customer's records, client list, or business.

6.3 Included Capacity and Pricing Adjustments: The Subscription Fee includes up to the number of Active Client Relationships specified in the applicable Pricing Proposal, which Customer may provision at any time. The Subscription Fee is based on that included capacity and does not vary based on the number of Active Client Relationships provisioned at any particular time, whether Customer provisions its capacity gradually or all at once. If Customer's needs grow beyond that capacity, TaxRock and Customer will establish revised capacity and pricing through an updated Pricing Proposal, and the additional capacity becomes available for provisioning upon Customer's written acceptance of it. Any revised Subscription Fee will take effect beginning with the first billing cycle following that acceptance and will not decrease based on reductions in Customer's actual usage. This Section governs changes arising from Customer requiring capacity beyond the amount included in its Pricing Proposal; Section 6.7 governs changes initiated by TaxRock to the Subscription Fee for Customer's existing capacity.

6.4 Pricing Structure: There are no platform fees, seat-based fees, or minimum commitments unless otherwise agreed in writing.

6.5 Billing & Payment: Subscription Fees are invoiced and charged monthly in advance on Customer's Billing Date and are due upon receipt. Customer will maintain a valid payment method on file and authorizes TaxRock to charge that method for all undisputed amounts on each Billing Date. Fees are exclusive of sales, use, VAT, GST, and similar taxes, which are Customer's responsibility where applicable. All amounts are in USD.

6.6 Suspension for Non-Payment: If payment fails, TaxRock may suspend access to the Services until all outstanding amounts are paid in full. Suspension does not relieve Customer of its obligation to pay fees due.

6.7 Price Changes: Subject to Section 6.3, which governs capacity increases, TaxRock may update the Subscription Fee for Customer's existing capacity upon at least thirty (30) days' written notice to Customer. Updated pricing takes effect at the start of the first billing cycle following the close of the notice period. Customer may terminate this Agreement without penalty by providing written notice of cancellation in accordance with Section 3 prior to the effective date of the price change.

6.8 No Refunds: All subscription fees are non-refundable except as expressly stated in this Agreement.

7. CONFIDENTIALITY

Both parties agree to maintain confidentiality of information disclosed under this Agreement. IRS transcripts, taxpayer data, and Customer financial information are deemed confidential at the highest level. The pricing and commercial terms set forth in the Pricing Proposal are confidential. Confidentiality obligations survive termination.

8. LIMITATION OF LIABILITY

8.1 Cap on Liability: To the maximum extent permitted by law, TaxRock's total aggregate liability arising out of or related to this Agreement shall not exceed the total subscription fees paid by Customer to TaxRock in the two (2) months immediately preceding the event giving rise to the claim.

8.2 Exclusion of Damages: In no event will either party be liable for indirect, incidental, special, consequential, exemplary, or punitive damages, including lost profits, lost revenue, loss of data, business interruption, replacement costs, or damages related to Customer's tax positions, even if advised of the possibility of such damages.

8.3 No Liability for Tax Outcomes: Customer acknowledges that TaxRock is a technology provider and does not provide tax, legal, or financial advice. TaxRock will not be liable for:

- **a)** IRS processing delays.
- **b)** transcript availability, accuracy, or completeness.
- **c)** missed IRS notices or deadlines.
- **d)** taxpayer penalties or interest.
- **e)** IRS rejection of submitted forms; or
- **f)** any tax positions taken or not taken by Customer or its clients.

8.4 Exceptions: The limitations above do not apply to a Party's fraud or willful misconduct.

8.5 Additional Limitations: Use of the Services remains subject to the additional disclaimers and limitations of liability contained in the TOS.

9. GENERAL PROVISIONS

9.1 Governing Law & Arbitration: This Agreement is governed by the laws of the State of **Delaware**, without regard to conflict-of-law principles. Any dispute arising out of or relating to this Agreement will be resolved exclusively through binding arbitration in **Denver County, Colorado**, administered by the American Arbitration Association ("AAA") under its Commercial Arbitration Rules. Judgment on the arbitration award may be entered in any court of competent jurisdiction.

9.2 Notices: All notices under this Agreement must be in writing and delivered by email to the contact information associated with each Party's account. Notices to TaxRock may be sent to support@taxrock.com. Notices are effective upon receipt.

9.3 Entire Agreement: This Agreement, together with the Pricing Proposal and the TOS, constitutes the entire agreement between the parties.

9.4 Amendments: Any amendment must be in writing and signed by both parties.

9.5 Electronic Signatures: Electronic signatures are valid and binding.

9.6 No Agency: Nothing in this Agreement creates a partnership, joint venture, employment, or agency relationship between the parties.

9.7 No Reliance: Each party acknowledges that it has not relied on any statements, representations, or warranties not expressly included in this Agreement, the Pricing Proposal, or the TOS.

By signing the Pricing Proposal to which this Agreement is attached, both parties agree to the terms outlined in this Agreement. Customer also accepts the **Pricing Proposal**, which is incorporated herein by reference and sets out Customer's Subscription Fee and included capacity.